



POLICE DEPARTMENT

May 8, 2026

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In the Matter of the Charges and Specifications :

Case No.

- against - :

C-030782

Lieutenant Christopher Crain :

Tax Registry No. 933719 :

49 Precinct Detective Squad :

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Mallika Kaushal, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Lieutenant Christopher Crain, on or about March 17, 2023, at approximately 2144 hours, while assigned to the 40th Precinct and on duty, in the vicinity of 589 East 141st Street, Bronx County, abused his authority as a member of the New York City Police Department, in that Lieutenant Crain improperly used his body-worn camera in failing to turn his body-worn camera on when required to do so, without police necessity. (*As amended*)

P.G. 212-123, Pages 1 & 2, Paragraph 4

USE OF BODY-WORN
CAMERAS

2. Lieutenant Christopher Crain, on or about March 17, 2023, at approximately 2144 hours, while assigned to the 40th Precinct and on duty, in the vicinity of 589 East 141st Street, Bronx County, wrongfully used force, in that Lieutenant Crain struck Complainant¹ in the head with his knee, without police necessity. (*As amended*)

P.G. 221-02, Page 2, Paragraphs 11 & 12

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 16, 2026. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. CCRB called no witnesses and relied upon body-worn camera evidence, Complainant's hearsay statement, and the Threat, Resistance, Injury ("TRI") Report that Respondent prepared in connection with this incident. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty of the charged misconduct.

¹ The complainant's identity is known to the Tribunal.

ANALYSIS

1. Introduction

This case presents the question of whether Respondent acted reasonably under the circumstances when, while supervising a street stop initiated by subordinate officers, he did not activate his body-worn camera and subsequently applied force during the arrest of the subject. The inquiry demands a careful, fact-intensive evaluation of the events as they unfolded, including Respondent's supervisory role, his subordinate officers' actions, and the evolving nature of the encounter. Based upon the totality of the evidence, I find that Respondent: (1) did not commit misconduct by not activating his body-worn camera, and (2) unintentionally used force when his knee accidentally made contact with Complainant's head.

2. Trial Evidence

The following is a summary of the relevant evidence presented at trial.

Complainant's Statement

On May 15, 2023, CCRB interviewed Complainant by telephone regarding an allegation of misconduct which had occurred on March 17, 2023. Complainant stated that on that date, at approximately 2100 hours, he was waiting for his girlfriend on a sidewalk near her apartment building in the vicinity of Crimmins Avenue and Beekman Avenue. He recalled applying lotion to his skin and texting his girlfriend when he observed "four to five" police officers sitting inside a stopped blue minivan near him (CCRB Ex. 3A at 6-7, 13-18, 22-24, 28).

Complainant asked, "What's going on, officers?" Complainant stated that the officers then exited their vehicle, approached him, and, without explanation or introduction, forcibly searched his clothing without his consent. He characterized Police Officer Martinez as exiting the vehicle "aggressively." Although the police officers did not say they were looking for weapons, Complainant postulated that they initiated the encounter to procure weapons because "that's what they be, you know, doing" and declared "no one called them." According to Complainant, the police officers patted him down and put their hands inside his pockets. Complainant estimated that the search lasted "less than five minutes" (*Id.* at 7, 15, 18-20, 29, 32, 35).

Complainant repeatedly told the police officers that he did not consent to the search and requested the basis for it. He recalled one of the police officers stating, "Don't you know stop and frisk is a thing in New York City now?" Complainant stated that he was wearing a red jacket, pants, and sneakers, and had a cell phone, lotion, and ID in his possession. He stated that his ID was confiscated from his pants' pocket during the search. Complainant explained that he took out his phone and began recording the police officers once they concluded their search and returned to their vehicle. He followed them to capture pictures of their badges and to request their names and badge numbers. Complainant stated that Police Officer Martinez punched him in the face from inside the vehicle as he was recording (*Id.* at 7-8, 17, 33-34, 38-39).

Complainant stated that all five officers then exited the vehicle: Police Officer Martinez tackled him to the ground, then reached for his phone and hand, as Complainant landed on his back. He speculated that the officers exited the vehicle because they became afraid when he said, "I got everything on camera." Complainant claimed that all the police officers punched him, and "the lieutenant" (Respondent) kicked him repeatedly. He stated that when he asked

Respondent, “Why [do] you keep on kicking me,” Respondent smiled at him. Complainant alleged that the police officers urged him to stop resisting and placed their knees on his chest while he lay on his stomach. He denied that he was resisting (*Id.* at 9-10, 40-44).

Complainant stated that his girlfriend arrived as Police Officer Martinez punched him; that she began recording them; and informed the police officers that he could not breathe. He also recalled “more than five people” yelling at the police officers as they, too, observed and recorded the encounter. Complainant claimed that the police officers then “did the same thing to them.” He recalled giving his phone to his girlfriend as the police officers unsuccessfully attempted to “yank” the phone away from him, with one police officer claiming that the phone was evidence. Complainant claimed that he told the police officers he could not breathe (*Id.* at 9-10, 13, 37, 40-41).

Complainant said that he lay on the ground, in pain and unable to breathe, while requesting an ambulance. He explained that the officers placed him in handcuffs before standing him up, escorted him to the blue minivan, and transported him to a precinct where he was arrested and fingerprinted. He continued to request an ambulance during the transport and at the precinct. Complainant also recalled that the driver of the blue minivan, a Hispanic male, was at the precinct and questioned his ability to speak English after the driver requested to see a sergeant. Complainant clarified that the police officer thought he had said: “surgeon” instead of “sergeant” (*Id.* at 10, 25-29, 36, 45-49).

Complainant stated that after spending five hours in a holding cell, he was released. He remembered asking whether he could have the identifying information of the on-scene police officers when the officer who arrested him began pushing him toward the precinct’s entrance. Police Officer Martinez then told him, “You have five seconds to get out, or else I’m going to

put you back in the cell.” Complainant acknowledged that the officers returned his belongings to him once he was outside the precinct. Complainant indicated that he went straight to Lincoln Hospital after leaving the precinct (CCRB Ex. 3A at 10-11, 20-21, 27-28, 50-53).

Throughout his CCRB interview, Complainant referred to videos he took, and submitted to CCRB, of Police Officer Martinez punching him and the officers tackling him. He also informed the CCRB investigator that he may have captured another video of Respondent kicking him, and Respondent admitting doing so. During the interview, Complainant volunteered several times that he studied criminal justice; when the investigator requested that he provide contact information for his girlfriend, he refused to provide it (*Id.* at 5, 12-13, 15, 22-23, 30, 42, 45, 58).

Body-Worn Camera Video Evidence

The parties stipulated to the admission of Respondent’s and Police Officer Ryan Hennessy’s body-worn camera recordings, CCRB’s Exhibits 1 and 2, respectively. The following is a summary of the Respondent’s body-worn camera video recording of the street stop with Complainant.

00:00-00:27 Respondent exits a vehicle and approaches five police officers surrounding Complainant. One police officer grips the Complainant’s left arm.

00:28-00:46 Respondent walks away from Complainant, then turns around and pauses.

00:47-00:57 Respondent resumes walking toward his vehicle and enters it.

00:58-01:16 Respondent quickly exits his vehicle and activates his BWC. He runs toward the area where the police officers initially surrounded Complainant. The police officers are gripping various parts of Complainant’s body as Complainant states, “I got that on camera. Grab my phone.” Respondent shoves Complainant’s chest with both of his hands. He then goes around to place his hands on Complainant’s back as Complainant falls to the ground.

01:17-01:35 Respondent and his subordinates kneel on the ground as Complainant lies on his stomach. One of the police officers punches Complainant’s right shoulder.

Respondent grabs Complainant's left arm and, along with another police officer, places the arm behind Complainant's back.

- 01:36-2:05** Complainant states, "I cannot breathe." Another police officer replies, "You can breathe fine." Complainant repeats that he cannot breathe as the police officers lift him up onto his knees. Respondent again grabs Complainant's left arm and, along with another police officer, places the arm behind Complainant's back. Complainant states, "Ow! Ow! They're killing me. They're killing me. They're killing me. Ow! Ow! Ow! And you saw me over here. They're harassing me. They're harassing me for no reason. They're harassing me for no reason. I studied criminal justice. For no reason. For no reason. I'm just standing right here. They hit me. They punched me."
- 2:06-3:07** A police officer rolls Complainant onto his back before lifting him onto his feet with another police officer. Two bystanders can be seen observing the arrest. The police officers then escort Complainant to an unmarked vehicle. Complainant can be heard shouting in the distance as Respondent retrieves a hollow cylinder and another item from the sidewalk. Respondent and other police officers look down at the sidewalk and observe small red items. Respondent states, "Kinda looks like a broke up Molly," to which a police officer replied, "Yeah."
- 3:08-3:31** Respondent walks over to the unmarked vehicle and observes Complainant in the vehicle. He asks a police officer standing beside the vehicle, "Are we good?" The officer replies, "Yeah." Respondent returns to his vehicle.

The following is an excerpt from Police Officer Hennessy's body-worn camera video recording which captures the moments preceding Respondent exiting his vehicle for the first and second time, the interaction between Complainant and the police officers in the lead vehicle, as well as the physical contact between Respondent and Complainant².

- 00:00-00:48** PO Hennessy grips Complainant's right arm as five other police officers surround Complainant. One police officer grips the back of Complainant's red puffer jacket. Complainant speaks with the officers before backing up and shrugging off one police officer's attempt to grab his jacket. The police officers then walk away and reenter an unmarked vehicle, while Complainant stands near the front passenger door.
- 00:49-00:55** Complainant leans into the open passenger window of the vehicle. The front passenger moves his right arm toward Complainant. As the vehicle moves

² The rest of PO Hennessy's BWC recording is either duplicative of Respondent's BWC recording at the scene of the stop or documents the events occurring after Complainant is taken into custody, which are not relevant to the charges before this Tribunal.

forward, Complainant takes a step backward before kicking the front passenger door.

00:56-01:29 The vehicle stops and the police officers exit. The front passenger barrels toward Complainant, grabbing and punching his midsection. PO Hennessy and other officers grab Complainant. Complainant falls to the ground and says, "Babe, get my phone. Take it." PO Hennessy punches Complainant. Complainant repeatedly states, "I'm good." He also asserts, "Nothing is happening."

01:30-02:03 Respondent grabs the back of Complainant's head as Respondent slides toward him; Respondent's knee makes contact with Complainant's head and stops his slide. Complainant states, "I cannot breathe." One police officer replies, "You can breathe fine." Complainant reiterates that he cannot breathe. PO Hennessy places Complainant in handcuffs. Complainant states, "Ow! Ow! They're killing me. They're killing me. They're killing me. Ow! Ow! Ow! And you saw me over here. They're harassing me. They're harassing me for no reason. They're harassing me for no reason. I studied criminal justice." An officer remarks, "They teach you to kick a cop car?" Complainant proclaims, "For no reason. For no reason. I'm just standing right here."

Respondent's Testimony

Respondent testified that on March 17, 2023, he was assigned to the 40th Precinct as a Special Operations Lieutenant. He recalled that on that date, at approximately 2200 hours, he was supervising the Conditions Team, in the vicinity of 141st Street. Respondent explained that the Conditions Team routinely conducted patrols in a caravan with two unmarked vehicles navigating streets near one another. He testified that he was the operator of the second vehicle in the caravan when the first vehicle stopped "four or five car lengths" ahead of his. Respondent stated that the police officers exited the first vehicle, but they did not radio his vehicle to report what they were doing. He stated that he attempted to radio them, but the officers did not respond to his radio call. Respondent explained that the police officers in the teams he supervised typically radioed each other before engaging in enforcement activity (T. 26-30, 36).

Respondent described the way the police officers exited the first vehicle as "without urgency." Based on the lack of radio notification and their unremarkable behavior, Respondent

presumed that the officers were not engaging in police action. As such, Respondent stated that he adopted a similar disposition, exiting his vehicle without haste. He observed his five subordinate officers on a sidewalk speaking to the Complainant from “a few feet” away. He clarified that his initial view of Complainant was obstructed by a mailbox, and he did not observe any police officer holding onto Complainant’s arm. Based on what he observed, Respondent reasoned that if the encounter was, in fact, police enforcement activity, it had concluded by the time he approached. Accordingly, Respondent testified that he and his subordinates turned around and returned to their vehicles, estimating that this portion of their interaction with Complainant spanned 30 to 40 seconds (T. 30-33, 58-61).

Respondent testified that had the officers informed him of an intent to stop Complainant, they all “should have went live right away.” He confirmed that, in retrospect, the officers should have activated their body-worn cameras during the Complainant’s detention, if only to generate a stop report. In addition, the officers “should have known” to radio his vehicle. He clarified, however, that the officers were authorized to initiate a stop without radioing him. Respondent admitted that he did not ask his subordinates why they stopped Complainant. He explained that his role as a supervisor was to “let them do their work” and not “step on their toes,” unless the officers acted unreasonably, such as a police officer straying from police action and making a situation “personal.” He explained that he decided to address their decisions not to radio “with them later” and their failures to activate their body-worn cameras “with the supervisor” (T. 30-33, 36, 61, 83-86).

Respondent testified that once he returned to his vehicle, he entered it and drove forward until he was “a car-length and-a-half” away from the lead vehicle, when he observed Complainant approach the front passenger of the first vehicle, reach into the vehicle, recoil, raise

his leg, and kick the front passenger door. Respondent testified that he was “not sure what Complainant was upset about” and what had led up to the initial encounter, but the situation had transformed into an arrest when he witnessed “an RMP getting kicked right in front of [him].” He reasoned that “[o]bviously, now, this is now a police interaction.” Respondent testified that he “went live right away,” turning on his body-worn camera, to capture the ensuing enforcement action (T. 35-37, 64).

Respondent recounted exiting his vehicle and hustling to the sidewalk. He recalled trying to gain control of Complainant as he was “kicking his legs,” “tying on his arms,” and “flailing all over the place.” According to Respondent, he observed his fellow officers surrounding Complainant and applying hand strikes to gain compliance. Respondent testified that he knelt on the ground and began “sliding closer” to Complainant to hold his head in place to ensure that he did not “whack his head on the ground.” He acknowledged that his right knee made contact with Complainant’s head, near his eye, during that process (T. 37-40, 49, 65).

Respondent acknowledged that Complainant alleged that they punched him and hoped the officers had it on camera. He also recalled Complainant stating, “I can’t breathe,” “You are killing me,” “They’re killing me,” and “They kicked me.” Respondent deduced that Complainant “obviously” could breathe because he “was having a full-on conversation.” He also reasoned the “I can’t breathe” comment was not due to the Respondent’s knee meeting his head; he also deduced the contact had little effect upon Complainant, as he continued to struggle against their efforts to handcuff him for “well over a minute.” He testified that the officers eventually placed Complainant in handcuffs and escorted him to an unmarked vehicle. Respondent estimated that the “scuffle” lasted a “minute-and-a-half” (T. 39-41, 68, 71, 75-77, 80-81).

While transporting Complainant to the precinct, Respondent testified that Complainant requested to go to the hospital. After processing Complainant, Respondent detailed that an officer asked Complainant whether he still wanted to go to the hospital, and Complainant replied in the negative. Respondent did not recall observing any visible injuries on Complainant's person (T. 46-47).

At the precinct, Respondent stated that the officers prepared a stop report, and he prepared a TRI report for the contact his knee made with Complainant's head. He also explained that the TRI report form offers limited dropdown options for describing the force applied. As a result, Respondent testified that he chose "foot strike," as it was the "closest thing" to him making contact with his knee. He clarified that "wrestling and grappling" was an option, but that it did not reflect his actions broadly or the use of force at issue. Respondent further noted that the TRI report form does not allow officers to identify whether the use of force was unintentional. He also characterized the force as a "Level 1" that was applied to "overcome resistance or aggression" and in "defense of others or defense of self." Respondent elucidated that a Level 1 use of force is addressed within the precinct (T. 40-46, 78).

On cross-examination, Respondent admitted that during his CCRB interview, he did not explicitly state that the contact his knee made with Complainant's head was unintentional. On redirect examination, he alleged that he was not asked during that interview whether the contact was intentional, nor provided an opportunity to elaborate on the purported use of force and the underlying circumstances. According to Respondent, Complainant filed a lawsuit against him that was pending at the time of trial (T. 50-51, 74-75; *see* Resp. Ex. A).

Credibility

It has long been settled that hearsay evidence is admissible in this Tribunal and may serve as the factual basis for a finding of misconduct if deemed reliable. The finder-of-fact must

scrutinize the out-of-court statement for several credibility factors, including internal consistency, logic, and corroboration by independent evidence. The Tribunal must also consider whether fundamental fairness allows the statement to be credited despite the lack of an opportunity for the Respondent to confront the declarant under oath during the trial. Based upon the totality of the circumstances, I find Complainant's hearsay statement credible with respect to certain factual assertions he made regarding how the encounter occurred, which were corroborated by either the body-worn camera videos or Respondent's admissions; I find the balance of his statement unreliable.

In Complainant's hearsay statement to CCRB, he emphasized the officers' use of force in arresting him, but denied resisting arrest and omitted his act of kicking the unmarked van that precipitated the arrest; his kick was captured on CCRB's Exhibit 1 and his resistance on CCRB's Exhibits 1 and 2. Rather, he asserted that the police officers exited their vehicle out of fear when he said, "I got everything on camera." Complainant accused Respondent of kicking him repeatedly, when CCRB's Exhibit 2 captures the Respondent's knee touching his head once.

Moreover, Complainant, who has a lawsuit against the Department stemming from this incident, repeatedly stated, "This is a good case," while being transported to the 40th Precinct for arrest processing. This assertion, coupled with his repeated statements that he studied criminal justice throughout the encounter, suggests a design to escalate the encounter and bolster a potential lawsuit, albeit based on a mistaken understanding of the law. Despite Complainant's belief that his arrest made for a "good case," he was hesitant to provide CCRB with the name of his girlfriend, an eyewitness to the incident, by his own description. Complainant also repeatedly referred to two videos he provided to CCRB in support of his allegations. Yet, CCRB did not submit these videos to the Tribunal for review, casting doubt on whether they depicted

what Complainant purported they did. Based upon the foregoing factors, I find Complainant's narration of the incident unreliable.

In contrast, Respondent testified at the trial in a forthright, candid manner. His testimony was corroborated by the body-worn camera videos and the TRI report format. Respondent's acknowledgment that, in hindsight, he and his subordinate officers could have handled the initial stop better imbued his testimony with the ring of truth. Having observed his demeanor, I find that his responses to the questions posed were precise, logical, and consistent with independent evidence in the case. I therefore credit his testimony.

Specification 1: Failure to Activate Body-Worn Camera Without Police Necessity

I find that CCRB has failed to meet its burden of proof by a preponderance of the credible, relevant evidence that Respondent engaged in misconduct by not turning on his body-worn camera when required to do so. Based upon the totality of the evidence, the record established that Respondent did not activate his body-worn camera upon approaching what he reasonably perceived was the conclusion of a street encounter.

Patrol Guide procedure 212-123 requires Members of Service to activate their body-worn cameras "prior to engaging in police action" and if any interactions "escalate to become adversarial or may hold evidentiary value" (P.G. 212-123[4], [4a]).

"Police Action" is defined as:

Any police service, as well as, law enforcement or investigative activity conducted in furtherance of official duties. Police action includes responding to calls for service, addressing quality of life conditions, handling pick-up assignments and any self-initiated investigative actions such as witness canvasses, vehicle stops and Investigative Encounters. Routine consensual conversations with members of the public carried out as part of community engagement efforts are not considered police action under this section.

(P.G. 212-123, Page 1).

According to his credible testimony, Respondent was supervising a routine caravan patrol when his subordinate officers encountered Complainant on the date in question. He reasoned that his subordinates' conduct (not radioing his vehicle to announce they were taking enforcement action and not replying to his radio call) led him to rely solely on his observations when deciding whether to activate his body-worn camera. Respondent highlighted his subordinates' actions upon initiating the street encounter, the officers' dispersal, and the brevity of the initial encounter as indicia that whatever the nature of the interaction was, it had concluded upon his approach and likely did not constitute police action, as it was defined in Patrol Guide 212-123 (eff. date 07/25/22).

Respondent readily admitted that had the officers notified him of an intent to stop Complainant, he would have activated his body-worn camera. He exercised due diligence by radioing the officers but did not receive a response. Instead, Respondent's subordinates exited their vehicle without urgency and without activating their body-worn cameras. Absent a notification that enforcement action was imminent, Respondent did not exit his vehicle until well after the encounter commenced and approached the officers who were standing around Complainant as the encounter was coming to an end. CCRB's Exhibit 1 conveys that the Respondent and his subordinates dispersed approximately ten seconds after he approached the encounter. Under these circumstances, Respondent reasonably concluded that he did not need to activate his body-worn camera to capture the final seconds of a nebulous interaction.

CCRB highlights the fact that an officer was gripping Complainant's jacket as a clear indication that Respondent's subordinates were conducting ongoing law enforcement activity. While BWC footage corroborates this assertion, Respondent testified credibly that he did not observe it. Absent further indicia to suggest the subordinate officers were engaged in police

action, as it is defined in Patrol Guide procedure 212-123, I find that Respondent acted as a reasonable supervisor, observing his subordinates and not intervening to clarify an ambiguous interaction that would have spanned ten more seconds but for Complainant's actionable offense.

Based upon the totality of the circumstances, I find that Respondent did not commit misconduct when he did not activate his body-worn camera. Accordingly, I find Respondent Not Guilty of Specification 1.

Specification 2: Use of Force Without Police Necessity

I find that CCRB has failed to meet its burden of proof by a preponderance of the credible, relevant evidence that Respondent used force without police necessity on March 17, 2023. I credit Respondent's testimony that he knelt on the ground to hold Complainant's head in place to prevent injury, and his knee accidentally touched Complainant's head when he slid closer to maintain his grip on Complainant. His credible testimony, supported by the body-worn camera recordings, established that six officers attempted to place Complainant in handcuffs for over a minute. During that time, Respondent knelt over Complainant in a relatively fixed posture as Complainant flailed around with his head in proximity to the concrete sidewalk. Respondent then slid toward Complainant as Complainant moved his head, resulting in his knee touching Complainant's head. Under these circumstances, Respondent acted as a reasonable officer trying to prevent injury and gain control of an actively resisting arrestee.

I have reviewed the portion of Police Officer Hennessy's body-worn camera video (CCRB Ex. 2), which captures the moment Respondent's knee makes contact with Complainant's head. In the view of the Tribunal, the video evidence is consistent with Respondent's description of how that contact was made and that it was accidental, rather than intentional.

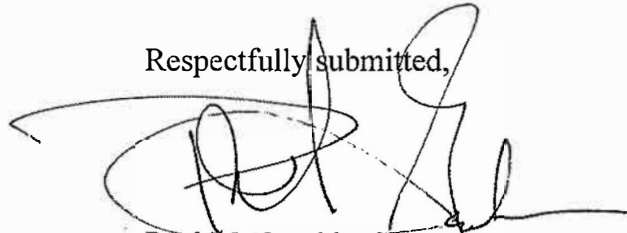
CCRB contends that Respondent's failure to assert the unintentional nature of the contact between his knee and Complainant's head during the CCRB interview is a tacit admission of intentionality. The Tribunal rejects this argument as CCRB's attempt at impeachment by omission lacks the requisite foundation. Impeachment by omission would require the interviewing attorney to have asked Respondent about his intention behind the contact his knee made with Complainant's head. During his CCRB interview, Respondent was not asked whether the contact his knee made with Complainant's head was intentional. Thus, he was not put on notice that his failure to assert that it was an accident may impair his assertion of that defense at trial. Respondent consistently asserted at trial that the contact his knee made with Complainant's head was unintentional, in the face of pointed cross-examination. CCRB bore the burden of proving, at trial, that the contact was a deliberate use of force; this Tribunal finds that they failed to meet that burden.

CCRB also argues that the Respondent's submission of a TRI report is an express admission of intentionality. The purpose of submitting a TRI report is to document the use of force or *suspected* (emphasis added) use of force so that it may be investigated. According to Respondent, during the arrest, he heard Complainant state, "I can't breathe," "You are killing me," and "They kicked me." In addition, he testified that he heard Complainant request medical attention during the ride to the precinct. At the 10:46 mark, CCRB's Exhibit 2 also captures Complainant accusing Respondent of kicking him in the head. Complainant put Respondent on notice of a potential excessive force allegation throughout the encounter. Respondent was thus obligated to fill out a TRI report for the contact his knee made with Complainant's head, and his submission of the report is not dispositive of the issue of whether Respondent's use of force was deliberate.

The Tribunal has reviewed the TRI report format and credits Respondent's testimony that he had a limited opportunity to accurately describe his use of force. Accordingly, I find that Respondent acted reasonably in assisting in Complainant's arrest and reporting the incidental use of force.

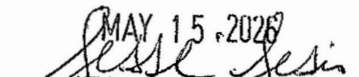
Based upon the foregoing, I find Respondent Not Guilty of Specification 2.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Paul M. Gamble, Sr.", written over a horizontal line.

Paul M. Gamble, Sr.
Assistant Deputy Commissioner - Trials

APPROVED

MAY 15 2026

JESSICA S. TISCH
POLICE COMMISSIONER